

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 24-23

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SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT,

RESPONDENT.

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**JOINT MOTION FOR CONFIDENTIAL TREATMENT**

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Complainant Samsung Electronics America, Inc. (“SEA”) and HMM Co., Ltd. (“HMM”) (collectively, the “Parties”), by and through their attorneys, hereby jointly move pursuant to the Federal Maritime Commission’s (“FMC” or the “Commission”) June 11, 2024 Initial Order and 5(b) of the FMC’s Rules of Practice and Procedure (the “Rules” or individually, “Rule”), 46 C.F.R. 502.5(b), for confidential treatment of both SEA’s and HMM’s Memoranda Regarding the Protection of Inadvertently Produced Privileged Documents (the “Memoranda”).

Confidential treatment is warranted because the Memoranda and the privilege log exhibits submitted therewith summarize and reference material SEA has designated as sensitive attorney-client privileged communications and materials protected by the work product doctrine, which are being submitted to the Presiding Officer for *in camera* review pursuant to the Presiding Officer’s May 15, 2026 Fourth Amended Scheduling Order.

Pursuant to Rule 5(b), the Parties will each file both a confidential and public version of the Memoranda. For the foregoing reasons, the Parties respectfully request that the materials and exhibits designated as confidential in the Memoranda be kept confidential and not disclosed to the public.

Dated: May 22, 2026

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